

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

RICARDO MENDOZA,

Plaintiff,

-against-

THE CITY OF NEW YORK, JULIO RAMOS, JOSEPH
ARDOLINO, JOSEPH SCAGLIONE, and JANE DOE 1
through 10, individually (the names John and Jane Doe being
fictitious, as the true names are presently unknown),

Defendants.

SUMMONS

Plaintiff designates
Kings County as the
place of trial.

The basis of venue is:
The county in which the
action arose per CPLR
504(3)

The cause of action
arose in Kings County
and is against the City
of New York

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, NY
June 24, 2019

Sincerely,



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TO:

THE CITY OF NEW YORK
THE NEW YORK CITY LAW DEPARTMENT
100 Church Street
New York, NY 10007

JULIO RAMOS
79th Precinct
263 Tompkins Ave
Brooklyn, NY 11216

JOSEPH ARDOLINO
79th Precinct
263 Tompkins Ave
Brooklyn, NY 11216

JOSEPH SCAGLIONE
79th Precinct
263 Tompkins Ave
Brooklyn, NY 11216

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Defendants.

**AMENDED
COMPLAINT**

Index No. 512026/ 2019

Plaintiff RICARDO MENDOZA, by his attorney ABRAHAM RUBERT-SCHEWEL of
LORD & SCHEWEL PLLC, alleges the following:

PRELIMINARY STATEMENT

1. Plaintiff brings this action for compensatory damages and punitive damages pursuant to the common law of the State of New York, for violations of his rights under the New York Constitution, and pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988 for violations of his rights under the Constitution of the United States of America.

JURISDICTION AND VENUE

2. Jurisdiction lies in the Supreme Court of New York, County of Kings, as all Defendants resided in the State of New York, and the amount in controversy exceeds the jurisdictional amounts of all lower courts.
3. Plaintiff complied with the requirements of New York General Municipal Law Section 50-H by serving a notice of claim on the City of New York dated July 26, 2018.

4. Ricardo Mendoza (“Mendoza”) was deposed by the City of New York pursuant to 50-H on April 23, 2019.

5. The City of New York has not adjusted this claim.

6. Venue is proper under CPLR § 504 in the County of Kings as it is the county where this cause of action arose.

JURY DEMAND

7. Plaintiff respectfully demands a trial by jury of all issues in this matter.

THE PARTIES

8. Plaintiff is a resident of the State of New York.

9. Defendant City of New York is a municipal corporation organized under the laws of the State of New York. It operates the New York City Police Department (“NYPD”), a department or agency of defendant City of New York responsible for the appointment, training, supervision, promotion and discipline of police officers and supervisory police officers, including the individually named defendants herein.

10. All Individual Defendant NYPD Officers, listed below, are entitled to indemnification by the City of New York under New York law for any liability arising from conduct described herein.

11. All Individual Defendant NYPD Officers, listed below, are entitled to indemnification by the City of New York pursuant to contract for any liability arising from his conduct described herein.

12. Defendant Officer Julio Ramos (“Ramos”) was at all times relevant to this Complaint a duly appointed and acting employee of the City of New York and the NYPD, acting under color of law and in his individual capacity within the scope of employment pursuant to the

statutes, ordinances, regulations, policies, customs, and usage of the City of New York and the NYPD. He is sued in his individual capacity.

13. Defendant Officer Joseph Scaglione (“Scaglione”) was at all times relevant to this Complaint a duly appointed and acting employee of the City of New York and the NYPD, acting under color of law and in his individual capacity within the scope of employment pursuant to the statutes, ordinances, regulations, policies, customs, and usage of the City of New York and the NYPD. He is sued in his individual capacity.

14. Defendant Officer Joseph Ardolino (“Ardolino”) was at all times relevant to this Complaint a duly appointed and acting employee of the City of New York and the NYPD, acting under color of law and in his individual capacity within the scope of employment pursuant to the statutes, ordinances, regulations, policies, customs, and usage of the City of New York and the NYPD. He is sued in his individual capacity.

15. John and Jane Doe, Numbered 1 through 10, are employees of the City of New York, who were acting under color of law in their individual capacities, whose names are not currently known. However, they are employees or agents of the City of New York.

Accordingly, they are entitled to representation in this action by the New York City Law Department ("Law Department") upon their request, pursuant to New York State General Municipal Law§ 50-k.

16. The Law Department, then, is hereby put on notice (a) that Plaintiff intends to name said persons in an amended pleading once the true names are known and (b) that the Law Department should immediately begin preparing the defense of any and all persons involved in the arrest and use of force against Mendoza.

STATEMENT OF FACTS COMMON TO ALL CLAIMS

Ricardo Mendoza is Driving on Flushing Avenue with His Father and Friends

17. On April 27, 2018, at approximately 2:00 a.m. Mendoza was driving on Flushing Avenue with a group of friends, including his father Ricardo Mendoza, Sr.

18. He had two female friends in the back seat of his vehicle, and a male friend riding in the front passenger seat.

19. His father, along with other friends, was in a car driving behind Mendoza's.

20. Mendoza stopped at a red light on Flushing avenue.

Officer Ramos Pulls up Behind the Vehicles and Points his Firearm at Mendoza

21. Officer Ramos, along with Scaglione and Ardolino, pulled up behind Mendoza's vehicle in an unmarked police car.

22. Officer Ramos, while in his vehicle, states "we're jumping out fucking everybody right now."

23. Ramos then states, "everybody go to one fucking car, **guns out fuck this.**"

24. Ramos exits his vehicle with his service weapon out.

25. Ramos drags the firearm along the rear and side of Mendoza's vehicle as he approaches.

26. Ramos points his gun at Mendoza when he reaches the front of his car.

27. Mendoza's window is already lowered, as are the windows of his friends in the rear seats.

28. One of the female friends says "why does he have his gun out."

Ricardo Mendoza is Viciously Assaulted by Ramos and Other Officers

29. Ramos orders Mendoza out of the vehicle.

30. Mendoza, terrified he may be shot, and unsure of why he is being arrested does not immediately respond.

31. Ramos drags Mendoza out of the vehicle.

32. Numerous other officers arrive on the scene.

33. Ramos then punches Mendoza in the face with his handcuffs.

34. Ramos then knees Mendoza.

35. Scaglione, Ardolino, and numerous other officers present, fail to intervene in Ramos's assault on Mendoza.

36. Mendoza falls to the ground and is bleeding profusely from a large gash under his right eye.

Mendoza is Taken to the Hospital and Ramos is Treated for a Right-Hand Injury

37. Mendoza is taken for medical treatment to his eye to Kings County Hospital.

38. Ramos receives treatment for an injury to his right hand.

Mendoza Suffers Permanent Injuries as a Result of the Assault

39. Mendoza continues to receive and seek medical treatment for this injury.

40. Mendoza has permanent nerve damage and scarring.

41. Mendoza suffers pain and numbness to the area below his right eye.

42. His vision, in his right eye, has deteriorated since the assault.

INJURIES AND DAMAGES

43. This action seeks damages on behalf of Plaintiff for extraordinary emotional physical pain and suffering, and injuries to his person, that Plaintiff was forced to endure as a consequence of Defendants' decidedly wrongful actions.

44. Plaintiff has suffered, and continues to suffer, severe and ongoing damages, specifically including lost educational and professional potential, physical pain and injuries, serious psychological and emotional damage, loss of familial relationships, and loss of quality of life.

45. The acts and omissions of Defendants entitle Plaintiff to compensatory and punitive damages.

**FIRST CLAIM:
EXCESSIVE FORCE UNDER 42 U.S.C. 1983**

46. Plaintiff Mendoza repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

47. Ramos punched Mendoza in the face with his handcuffs and then kneed Mendoza.

48. Mendoza did not resist in any way.

49. The force used was unreasonable and excessive.

50. As a result of the unreasonable and excessive force, Plaintiff Mendoza suffered injuries and substantial pain.

51. Defendant Ramos's use of force was a substantial factor in causing the harm to Plaintiff.

52. As a result of the foregoing, Plaintiff Mendoza was caused to suffer physical, psychological and emotional injuries, violation of his civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and to seek continuing medical treatment.

**SECOND CLAIM:
ASSAULT AND BATTERY UNDER NEW YORK STATE LAW**

61. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

62. That, on April 27, 2018, Defendants Ramos, Scaglione and Ardolino were acting within the scope of their employment with the Defendant, the City of New York.

63. That, on April 27, 2018, Defendants Ramos, Scaglione and Ardolino committed an assault and battery knowingly, intentionally, and willfully against Mendoza.

64. That, on April 27, 2018, Defendants Ramos, Scaglione and Ardolino who committed the aforementioned assault and battery upon Plaintiff were acting within the scope of their employment with the City of New York.

65. That, on April 27, 2018, the assault and battery on Plaintiff was without probable cause and was not the result of an appropriate arrest.

66. By reason of the foregoing, Defendants Ramos, Scaglione and Ardolino are liable to Plaintiff for damages.

**THIRD CLAIM:
FAILURE TO INTERVENE UNDER 42 U.S.C. 1983**

67. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

68. Defendants Scaglione, Ardolino, and other officers, had an opportunity prevent the excessive force and assault and battery against Mendoza, had a duty to intervene and prevent such conduct and failed to intervene.

69. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages previously alleged.

**FOURTH CLAIM:
VIOLATIONS OF DUE PROCESS OF LAW AND FABRICATION OF
EVIDENCE UNDER 42 U.S.C 1983**

70. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

71. That Defendants Ramos, Scaglione and Ardolino falsely informed the Kings County District Attorney's Office ("KCDA") that they saw Plaintiff drive 90 MPH, almost hit multiple pedestrians, and that Plaintiff resisted arrest.

72. That Defendants Ramos, Scaglione and Ardolino falsely stated this information under penalty of perjury, and then forward this information to the KCDA.

73. This claim was to give the misleading and false impression that Defendants Ramos, Scaglione and Ardolino lawfully arrested Plaintiff.
74. That the aforementioned statements by Defendants Ramos, Scaglione and Ardolino, consisted of fabricated and falsified information was utilized and relied upon by the KCDA.
75. The Individual Defendants acting individually and in concert and conspiracy, deliberately, and recklessly.
76. At all times Defendants were acting within their scope of their employment with The City of New York, at the aforesaid location.
77. That this information caused Plaintiffs to be denied his liberty and right to a fair prosecution in violation of fourth, fifth, sixth, and fourteenth amendments of the United States Constitution.

**FIFTH CLAIM
VIOLATION OF THE NEW YORK STATE CONSITUTION
(Against All Defendants)**

78. Plaintiff repeats and realleges each allegation contained in the preceding paragraphs as if fully set forth herein.
79. By virtue of the aforementioned acts, the Individual Defendants are liable to Plaintiff for violating his right to due process under Article I § 6 of the New York State Constitution, and his right to be free of unreasonable and unlawful searches and seizures under Article I § 12 of the New York State Constitution.
80. Defendant City of New York is liable for these violations of the New York State Constitution under the principle of *respondeat superior*.

81. Consequently, the Individual Detectives and the City of New York are liable to Plaintiff for compensatory and punitive damages.

SIXTH CLAIM:

42 U.S.C. § 1983; *MONELL* MUNICIPAL LIABILITY FOR FAILURE TO TRAIN, TRACK AND PROPERLY DISCIPLINE EXCESSIVE FORCE BY NYPD OFFICERS

82. Plaintiff repeats and realleges each allegation contained in the preceding paragraphs as if fully set forth herein.

83. Officers in the NYPD, such as Ramos, continue to use excessive force without proper training, discipline, oversight, or monitoring of such incidents.

84. Here, Ramos escalated the encounter by instructing his fellow officers to have their “guns out” during a typical traffic stop.

85. He then continued to escalate the encounter by drawing his weapon, running it against the vehicles he had pulled over, and pointing his weapon at Mendoza.

86. This escalation culminated in his violent and unjustified assault on Mendoza.

87. The Department of Investigation, the City’s Independent Inspector General, issued a report in 2015 finding “failure [by the NYPD] to properly instruct on de-escalation tactics and impose discipline.”¹

- a. The report found that in “36% of cases where the NYPD Commissioner was presented with evidence of excessive force, as independently verified by OIG-NYPD experts, the Commissioner refused to impose any form of discipline.” *Id.*

¹ The City of New York, *Department of Investigation, DOI’s Office of the Inspector General for the NYPD Issues Report on Police Use of Force Finding Failure to Properly Instruct on De-escalation Tactics and Impose Discipline*, October 1, 2015 (available at https://www1.nyc.gov/assets/doi/reports/pdf/2015/2015-10-01-Pr_uofrpt.pdf).

- b. Addressing de-escalation, **“OIG-NYPD identified little to no substantive focus on de-escalation in NYPD’s training programs.** In the Police Academy’s nearly 500 hours of coursework, OIG-NYPD identified only one nine-hour course (entitled “Use of Force”) that directly pertains to an officer’s use of force. Just one 4.5-hour course (entitled “Policing Professionally”) addresses de-escalation tactics — less than one percent of the total curriculum. **NYPD currently has no course in the Police Academy for recruits specifically devoted to learning and practicing de-escalation techniques.”** *Id.* At 2.
- i. The report specifically recommended adding a “specific Police Academy course on” de-escalation as well as “scenario-based trainings with an evaluative component.” *Id.*
- ii. The report also recommended updating the NYPD Patrol Guide to require “officers to de-escalate in all encounters where appropriate.” *Id.*
- c. The report further recommended that the NYPD adopt “Department wide systems for tracking use of force in order to monitor the problem.” *Id.* at 1.
- d. The DOI issued a second report in 2018, finding the NYPD in “Non-Compliance [] With New Use of Force Reporting Requirements.”²

² The City of New York Department of Investigation, *DOI Investigation Finds Non-Compliance by NYPD with New Use of Force Reporting Requirements*, February 2018 (available at https://www1.nyc.gov/assets/doi/press-releases/2018/feb/08Use_of_Force_Report_020618.pdf); Craig McCarthy, *DOI Says NYPD is Not Accepting Reform Recommendations*, April 1, 2019, NY Post (available at <https://nypost.com/2019/04/01/doi-says-nypd-is-not-accepting-reform-recommendations/>) (“The NYPD rejected nearly 40 percent of the reforms recommended by its independent watchdog last year, according to statistics released Monday by the city Department of Investigation.”).

88. The NYPD continues to provide insufficient or no training to officers on de-escalating encounters with the public, or on the use of minimal force.
89. The NYPD continues to fail to properly monitor and track officers use of excessive force or for improperly escalating, or failing to de-escalate, encounters with the public.³
90. The NYPD continues to fail to properly discipline officers for use of excessive force or for improperly escalating, or failing to de-escalate, encounters with the public.
91. The NYPD Patrol Guide contains no explicit rule or guidelines on when an officer may or may not draw his or her firearm.⁴
92. The NYPD provides no classroom or scenario-based trainings on when an officer may draw his or her firearm.
93. The NYPD provides none or insufficient tracking, monitoring, or discipline on when an officer draws his or her firearm, or improperly draws a firearm.
94. Under the principles of municipal liability for federal civil rights violations, the City of New York, and the NYPD or authorized delegates have final managerial responsibility for training, instructing, tracking, supervising, and disciplining officers regarding their conduct in their constitutional obligation to not use excessive force.

³ *Published Report Prompts New Calls for Transparency in NYPD's Disciplinary System*, CBS New York, May 28, 2019, (available at <https://newyork.cbslocal.com/2019/05/28/published-report-prompts-new-calls-for-transparency-in-nypds-disciplinary-system/>).

⁴ Al Baker, *For New York City Officers, Drawing Guns is Based on Discretion, Not Rules*, N.Y. Times, Nov. 25, 2014 (available at <https://www.nytimes.com/2014/11/26/nyregion/for-new-york-city-officers-drawing-guns-is-based-on-discretion-not-rules.html>) (“Police Commissioner William J. Bratton said that officers were relied upon to use discretion, and that there was no ‘specific prohibition’ against drawing a gun. In fact, he acknowledged, it was not uncommon for housing officers to do so, with good reason.”).

95. The aforesaid deliberate or de facto policies, procedures, regulations, practices and/or customs, including the failure to properly instruct, train, supervise, and/or discipline employees with regard thereto, were implemented or tolerated by policymaking officials for Defendant City, who knew:

- a. to a moral certainty that such policies, procedures, regulations, practices, and/or customs concern issues that regularly arise during encounters and street and car stops with the public;
- b. that such issues present employees with difficult choices of the sort that instruction, training, supervision, and discipline will make less difficult;
- c. that the wrong choice by NYPD officers concerning the use of excessive force will frequently cause the deprivation of the constitutional rights of the accused and cause him constitutional injury; and
- d. that employees of the NYPD, have a documented history of making wrong choices regarding drawing their firearms, escalating encounters, failing to de-escalate, and use of excessive force.

96. The aforementioned policymaking officials had the knowledge and the notice alleged in the preceding paragraph based upon:

- a. numerous credible allegations in the form of secondary sources⁵, civil lawsuits, and DOI and other reports that the NYPD had:
 - i. failed to properly train or supervise Ramos and members of the NYPD on de-escalation, when to draw a firearm, and proper use of force;
 - ii. that officers in the NYPD, such as Ramos, routinely use excessive force without justification;

⁵ See *Cordero v. City of New York*, 282 F. Supp. 3d 549, 563–64 (E.D.N.Y. 2017) (“Newspaper articles, reports, and other documents may provide sufficient documentary evidence for *Monell* liability.”).

- iii. Officers in the NYPD, such as Ramos, routinely unnecessarily draw their firearms and fail to de-escalate encounters, or in fact escalate encounters with the public leading to use of excessive force.

97. During all times material to this complaint, the City and the NYPD, owed a duty to the public at large and to Plaintiff to implement policies, procedures, customs, and practices sufficient to prevent, deter, and avoid conduct by subordinates that violate the constitutional rights of criminal suspects or defendants and of other members of the public.

98. However, the NYPD and its designees, as policymakers for the City, knowingly and intentionally breached, or were deliberately indifferent to, this duty.

PRAYER FOR RELIEF

WHEREFORE, plaintiff respectfully requests judgment against defendants as follows:

- (a) Compensatory damages against all defendants, jointly and severally;
- (b) Punitive damages against the individual defendants, jointly and severally;
- (c) Reasonable attorneys' fees and costs; and
- (d) Such other and further relief as this Court deems just and proper.

Dated: June 24, 2019
New York, New York

/s/ Abraham Rubert-Schewel
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ATTORNEY'S VERIFICATION

Abraham Rubert-Schewel, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at LORD & SCHEWEL PLLC, attorneys of record for plaintiff Ricardo Mendoza I have read the annexed SUMMONS and COMPLAINT and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

This verification is made by me because Plaintiff is not presently in the county wherein I maintain my offices.

DATED: New York, New York
June 24, 2019



Abraham Rubert-Schewel
Counsel for Plaintiff